

May 15, 2026, Civil Law & Motion Tentative Rulings

1. CU0000090 Matthew Palleschi, et al. v. Daniel Fraiman Construction, Inc. et al.

The March 16, 2026, motion by Plaintiff Matthew Palleschi “to compel Daniel Fraiman Construction, Inc. to provide full and complete verified responses to Plaintiff’s Requests for Admission (Set Three) and full and complete verified responses to Plaintiff’s Construction Form Interrogatory No. 326.1 without objections within 10 days, and imposing monetary sanctions...,” set for hearing on May 15, 2026, Mot. 1:12-20, is denied as moot.¹

This Court previously considered:

Plaintiff Palleschi’s March 16, 2026, motion for an order deeming its Requests for Admission (Set Three) directed to Defendant Daniel Fraiman Construction, Inc. (“DFC, Inc.”) as admitted; Plaintiff’s motion for an order directing Defendant DFC, Inc. to provide further responses to Plaintiff’s Requests for Admission (Set Three) and related Plaintiff’s Construction Form Interrogatory No. 326.1; and Plaintiff’s request for monetary sanctions against DFI, Inc. and its counsel. April 20, 2026 Memorandum Decision and Order (“Order”).

The Court ruled as follows:

¹ In its prayer for relief, Plaintiff requests:

[T]he Court grant Plaintiff’s Motion for an Order Compelling Daniel Fraiman Construction, Inc. to Provide full and complete Responses, with proper Code Compliant Verifications to Plaintiff’s Request For Admissions (Set Three) and Plaintiff’s Form Interrogatory-Construction No. 326 without Objections within 10 days, and impose monetary sanctions
Mot., 14:17-22.

In its notice of motion, however, Plaintiff states:

Plaintiff Matthew Palleschi will Move this Court for an ORDER, compelling Daniel Fraiman Construction Inc.(“DFC”) to Provide Verified Code Compliant Responses to Plaintiff’s Requests for Admission (Set Three) without objections within 10 days; and *to Provide Verified Code-Compliant Responses to Plaintiff’s Form Interrogatories Construction, Set Two* without objections within 10 days; and Imposing monetary sanctions against
Mot., 2:3-15 (italics added). Moreover, the motion appears to include some argument as to the same. Mot. 8:2-24.

The Court notes that no opposition or reply has been filed in connection with this motion.

The Court denies Plaintiff's motion for an order deeming its Requests for Admission (Set Three) directed to DFC, Inc. as admitted. The Court denies as moot, without prejudice, Plaintiff's motion for an order directing Defendant DFC, Inc. to provide further responses to Plaintiff's Requests for Admission (Set Three) and related Plaintiff's Construction Form Interrogatory No. 326.1. The motion for monetary sanctions is granted in part against counsel for DFI, Inc. solely. Order, 3:15-18.

In light of all the above ruling, it appears that the issues raised in the instant motion are presently moot. The Court therefore denies the motion without prejudice on this ground.

2. CU0001842 Charles Eugene Murdock vs. Jodi Michelle Andrews, et al.

Defendant Donald Ringen's Motion for Summary Judgment

Defendant Donald Ringen's motion for summary judgment is denied.

Request for Judicial Notice and to File a Sur-Reply Brief

Defendant's unopposed request for judicial notice is granted. Plaintiff's request to file a sur-reply brief is granted; the objections to the same are overruled.

Relevant Factual History

This action arises from a motor vehicle accident on October 28, 2024, when Defendant Jodi Michelle Andrews ("Andrews"), while operating a vehicle *owned* by Defendant Donald Leslie Ringen ("Ringen"), collided with the rear of Plaintiff Charles Eugene Murdock's vehicle. Andrews, reportedly, was found to be under the influence of alcohol/drugs at the time of the collision. The operative complaint is Plaintiff's First Amended Complaint ("FAC"), filed on February 4, 2025, and adding defendant Ringen as Doe 1 on February 10, 2025, alleging causes of action against both Defendants for negligence and negligence *per se*. On May 23, 2025, Ringen's motion to strike punitive damages was granted with leave to amend. On December 16, 2025, Plaintiff dismissed the second cause of action for negligence *per se* as to Ringen. Ringen now moves for summary judgment as to the first cause of action for negligence, the sole remaining cause of action against him.

Legal Standard

Code of Civil Procedure section 437c(f)(1) provides that, "A party may move for summary adjudication as to one or more causes of action within an action." Such "[a] motion for summary adjudication shall be granted only if it *completely* disposes of a cause of action..." Code Civ. Proc. § 437c(f)(1) (*italics added*). The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843. In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine